

INDEPENDENT CONSULTANT AGREEMENT

This Independent Consultant Agreement (“**Agreement**”) is made on the **04-Oct-2024** (“**Effective Date**”)

Between

Tao Digital India Private Limited, a company incorporated under the provisions of the Companies Act, 2013 in force in India, having its registered office at A-502, 5th Floor, A-Block, The Platina, Gachibowli, Hyderabad-500032 (hereinafter “**Company**”)

AND

A Saikrishna Achary having address at **Dera Street, Konkorada, Ganjam, Odisha, 761144**, (hereinafter referred to as “**Consultant**”)

Company and Consultant are jointly referred to as the “**Parties**” in this Agreement.

NOW, THEREFORE, the Company and Consultant hereby agree as follows:

1. **Defined Terms:** The Parties agree that following terms referred in this Agreement shall form part of key information and shall be interpreted and apply as referred in various provisions of this Agreement:

Sr.	Term used	Description
1)	Effective Date	04-Oct-2024
2)	Location of Services	Hyderabad unless otherwise communicated and mutually agreed in writing.
3)	Working hours	A day consists of 9 hours of work which includes break as per your shift
4)	Designation	Jr GIS Engineer
5)	Term	1 year from Effective Date, which may be extended
6)	Nature of Services	Project-based work as assigned by Company from time to time.
7)	Consulting Fee	INR 21,000/- Per month , subject to applicable Tax Deducted at Source (TDS) in accordance with prevailing laws and regulations.
8)	Payment Term	• Payment will be made in INR through account transfer based on the number of hours of Services performed by the Consultant in the applicable month. • The Consultant is solely responsible for filing Income tax return and residual taxes if any on their Consulting Fees.
9)	Termination	Either party may terminate the Agreement for convenience by providing 30 days' written notice to the other party or one month's Consultant Fees in lieu of such notice period.

2. **Confidentiality:** The Consultant agrees to maintain strict confidentiality of all proprietary information concerning the Company, its employees, projects, and clients, both during and after the term of this Agreement. This obligation of confidentiality will survive the termination of this Agreement for a period of 5 years.



3. **Independent contractor relationship:** The Consultant is an independent contractor and not an employee of the Company. Nothing in this Agreement will create a joint venture or employer-employee relationship.
4. **Leaves and Benefits:** Consultant may take up to 12 days of paid time off during the Term, subject to prior written approval by the reporting manager. Such leaves shall be on an accrual basis at the rate of one (1) working day of completed month of continuous service with Company.
For the avoidance of doubt, such time off shall not be deemed to create any employment relation or entitlement under applicable labor laws.
Apart from this, Consultant shall not be entitled to or eligible for any other benefits, perquisites, or other amounts than those specified under this Agreement.
5. **Indemnity:** The Consultant agrees to indemnify the Company against any legal claims, losses, or damages arising from their failure to comply with the terms of this Agreement.
6. **Waiver:** No failure by either party to exercise or no delay in exercising any right hereunder shall operate as a waiver thereof, nor shall any single or partial exercise of any right hereunder by either party preclude any other or future exercise of any right hereunder by that party.
7. **Force Majeure:** Neither party shall be liable for any failure or delay in fulfilling the terms of this Agreement due to fire, strike, war, civil unrest, terrorist action, government regulations, acts of Nature or other causes which are unavoidable and beyond the reasonable control of the party claiming force majeure.
8. **Governing law and Arbitration:** This Agreement shall be governed by and construed in accordance with the laws of India. In the event of a dispute arising out of this Agreement, the Parties shall first attempt to resolve the matter through mediation. If resolution is not achieved, the dispute shall be resolved through arbitration in Hyderabad, India, under the rules of the Indian Arbitration and Conciliation Act, 1996. The courts in Hyderabad shall have exclusive jurisdiction.
9. **Entire Agreement:** This Agreement shall constitute a complete and exclusive Agreement between the Parties respecting the subject matter. This Agreement may not be amended, terminated, or superseded except by agreement in writing between the Parties. This Agreement supersedes all previous agreements between Consultant and Company, whether oral or written, regarding subject matter hereof.

IN WITNESS THEREOF, the Parties hereto have caused this Agreement to be duly executed by their authorized representatives as of the Effective Date written above.

TAO DIGITAL INDIA PRIVATE LIMITED	CONSULTANT
Signature: 	Signature:
Name: Suresh Buddineni	Name: A Saikrishna Achary
Title: HR Manager	Title: Jr GIS Engineer
Date: 04-Oct-2024	Date: 04-Oct-2024

